



CHAPTER viii

An Act to amend the provisions relating to the superannuation fund established by the Tyne Improvement Commissioners to empower the said Commissioners to borrow further money and for other purposes.

[30th April 1958.]

WHEREAS by the Tyne Improvement Acts 1850 to 1957 the Tyne Improvement Commissioners (hereinafter called "the Commissioners") were constituted and incorporated as the dock harbour and conservancy authority for the river Tyne and various powers and obligations were conferred and imposed upon them:

And whereas by the Tyne Improvement Act 1890 the Commissioners were authorised to establish a fund for the payment of superannuation and other retiring allowances to the officers and servants of the Commissioners to be called "the superannuation fund" and the powers so conferred were amended by subsequent Acts and it is expedient that those powers be further amended as by this Act provided:

And whereas it is expedient to authorise the Commissioners to borrow further money:

And whereas it is expedient that the other provisions of this Act be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1.—(1) This Act may be cited as the Tyne Improvement Act 1958.

Short and
collective
titles.

(2) The Tyne Improvement Acts 1850 to 1957 and this Act may be cited together as the Tyne Improvement Acts 1850 to 1958.

Definitions.

2. In this Act unless the subject or context otherwise requires—

“the Act of 1861” “the Act of 1890” “the Act of 1925”
“the Act of 1934” “the Act of 1949” “the Act of 1950” “the Act of 1952” and “the Act of 1954” respectively mean the Tyne Improvement Acts of those respective years;

“the Commissioners” means the Tyne Improvement Commissioners;

“the fund” means the superannuation fund established by the Commissioners in exercise of their powers under the Act of 1890 as subsequently amended;

“the Minister” means the Minister of Transport and Civil Aviation;

“the scheme” means the scheme for the time being in force under section 37 (Superannuation fund) of the Act of 1890 as amended or extended by any subsequent Act including this Act.

Further provisions as to scheme.

3. Section 5 (Further provisions as to scheme) of the Act of 1949 shall be read and have effect and be deemed to have had effect from the first day of January nineteen hundred and fifty-eight as if the following paragraph were inserted at the end of the section:—

“(c) For enabling a contributor to the fund to make arrangements for the payment in the event of his death whilst in the employment of the Commissioners or after retiring from that employment owing to bodily or mental infirmity and in either case before reaching the age of voluntary retirement prescribed by the scheme of an annuity payable after his death to his widow during the lifetime of such widow or until her remarriage in lieu of any lump sum payment or part thereof which his personal representatives or he would otherwise be entitled to receive from the fund.”

Increase of contributions to fund.

4. Section 37 (Superannuation fund) of the Act of 1890 as amended by section 26 (Increase of contributions to superannuation fund) of the Act of 1925 shall be read and have effect and be deemed to have had effect from the first day of January nineteen hundred and fifty-eight as if the words “six and a half” were substituted for the word “five” in the paragraph of that section which commences “The percentage of their salaries”.

Power to borrow.

5. The aggregate amount which may be borrowed by the Commissioners under Part II (Financial) of the Act of 1950 as amended by section 7 (Power to borrow) of the Act of 1952 and section 4 (Power to borrow) of the Act of 1954 is hereby increased from four million pounds to seven and a half million pounds and all the provisions of that Part shall be read and have effect as if the

sum of seven and a half million pounds were substituted for the sum of four million pounds in subsection (1) of section 5 (Power to borrow) of the Act of 1950.

6. The time now limited by section 14 (Powers of construction to cease if works not completed within limited period) of the Act of 1861 for the completion of any of the works authorised by section 13 (Works authorised by Act) of that Act is hereby extended until the thirty-first day of July nineteen hundred and sixty-nine or such extended time as the Minister may on the application of the Commissioners allow and the said Act shall be read and have effect accordingly.

Extension of time for completion of works.

7.—(1) Subsection (1) of section 16 (Lists of electors and votes to be compiled) of the Act of 1934 shall be read and have effect as if for the words “on the outer door of each of the three custom houses” there were substituted the words “for public inspection in the office of the Commissioners’ Collector of dues on goods and shipping in each of the three ports”.

Amendment of section 16 of Act of 1934 and Second Schedule to Act of 1950.

(2) The Second Schedule to the Act of 1950 shall be read and have effect as if in the second column of the second reference in the said schedule to subsection (1) of section 16 of the Act of 1934 for the words “at custom houses” there were substituted the words “in the office of the Commissioners’ Collector of dues on goods and shipping in each of the three ports”.

8. Section 57 (Notice to be given of Contracts to the Amount of 100/ or upwards) of the Commissioners Clauses Act 1847 as incorporated in the Tyne Improvement Acts 1850 to 1952 shall be read and have effect as if the words “one thousand pounds” were substituted for the words “one hundred pounds” in that section.

Amendment of section 57 of Commissioners Clauses Act 1847 as incorporated in certain Acts.

9. All moneys necessary for carrying this Act into effect and payable by the Commissioners and all the costs charges and expenses of and preliminary and incidental to the preparing obtaining and passing of this Act shall be provided and paid by the Commissioners out of the Tyne Consolidated Fund.

Expenses of execution and costs of Act.

Table of Statutes referred to in this Act.

Short title	Session and chapter
Commissioners Clauses Act 1847	10 & 11 Vict. c. 16.
Tyne Improvement Act 1861	24 & 25 Vict. c. xci.
Tyne Improvement Act 1890	53 & 54 Vict. c. xxviii.
Tyne Improvement Act 1925	15 & 16 Geo. 5. c. xxxiii.
Tyne Improvement Act 1934	24 & 25 Geo. 5. c. lxxviii.
Tyne Improvement Act 1949	12 & 13 Geo. 6. c. v.
Tyne Improvement Act 1950	14 Geo. 6. c. xvii.
Tyne Improvement Act 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. vii.
Tyne Improvement Act 1954	2 & 3 Eliz. 2. c. xx.

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